



January 22, 2026

HOUSE BILL No. 1414

DIGEST OF HB 1414 (Updated January 21, 2026 10:19 am - DI 148)

Citations Affected: IC 14-22; IC 14-23.

Synopsis: Forest management. Requires the department of natural resources (department) to establish recreational fees for the access and use of state forest land. Provides that the department shall ensure that at all times: (1) 10% of state forest land consists of forests that are 100 years or older; and (2) 10% of state forest land consists of forests that are 20 years or younger. Provides that money in the state forestry fund does not revert to the state general fund. Establishes various restrictions on landowner liability to recreational users.

Effective: July 1, 2026.

Baird, Bartels, Jackson C

January 8, 2026, read first time and referred to Committee on Natural Resources.
January 22, 2026, amended, reported — Do Pass. Referred to Committee on Ways and Means pursuant to Rule 126.3.

HB 1414—LS 6924/DI 150



January 22, 2026

Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE BILL No. 1414

A BILL FOR AN ACT to amend the Indiana Code concerning natural and cultural resources.

Be it enacted by the General Assembly of the State of Indiana:

- 1 SECTION 1. IC 14-22-10-2, AS AMENDED BY P.L.113-2019,
2 SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
3 JULY 1, 2026]: Sec. 2. (a) As used in this section and section 2.5 of
4 this chapter, "governmental entity" means any of the following:
5 (1) The government of the United States of America.
6 (2) The state.
7 (3) A county.
8 (4) A city.
9 (5) A town.
10 (6) A township.
11 (7) The following, if created by the Constitution of the United
12 States, the Constitution of the State of Indiana, a statute, an
13 ordinance, a rule, or an order:
14 (A) An agency.
15 (B) A board.
16 (C) A commission.
17 (D) A committee.

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- 1 (E) A council.
- 2 (F) A department.
- 3 (G) A district.
- 4 (H) A public body corporate and politic.
- 5 (b) As used in this section and section 2.5 of this chapter, "monetary
- 6 consideration" means a fee or other charge for permission to go upon
- 7 a tract of land. The term does not include:
- 8 (1) the gratuitous sharing of game, fish, or other products of the
- 9 recreational use of the land;
- 10 (2) services rendered for the purpose of wildlife management; or
- 11 (3) contributions in kind made for the purpose of wildlife
- 12 management.
- 13 (c) As used in this section and section 2.5 of this chapter, "owner"
- 14 means a governmental entity or another person that:
- 15 (1) has a fee interest in;
- 16 (2) is a tenant, a lessee, or an occupant of; or
- 17 (3) is in control of;
- 18 a tract of land.
- 19 (d) A person who goes upon or through the premises, including
- 20 caves, of another:
- 21 (1) with or without permission; and
- 22 (2) either:
- 23 (A) without the payment of monetary consideration; or
- 24 (B) with the payment of monetary consideration directly or
- 25 indirectly on the person's behalf by an agency of the state or
- 26 federal government;
- 27 for the purpose of swimming, camping, hiking, sightseeing, **exercising,**
- 28 **cycling,** or accessing or departing from a trail, a greenway, or another
- 29 similar area, or for any other purpose (other than the purposes
- 30 described in section 2.5 of this chapter) ~~does not have an assurance that~~
- 31 ~~the premises are safe for the purpose.~~ **is subject to the limitations of**
- 32 **liability granted to the owner of the premises described in**
- 33 **subsection (e).**
- 34 (e) The owner of the premises does not
- 35 ~~(1) assume responsibility; or~~
- 36 ~~(2) incur liability;~~
- 37 ~~for an injury to a person or property caused by an act or failure to act~~
- 38 ~~of other persons using the premises.~~ **assume responsibility or incur**
- 39 **liability for an injury or damage to a:**
- 40 (1) **person caused by:**
- 41 (A) **an act; or**
- 42 (B) **the failure to act;**



1 of another person using the premises;

2 (2) person caused by a condition on the land; or

3 (3) person's property caused by:

4 (A) the act of another person using the premises; or

5 (B) a condition on the land.

6 (f) This section does not affect the following:

7 ~~(1) Existing Indiana case law on the liability of owners or~~
8 ~~possessors of premises with respect to the following:~~

9 ~~(A) Business invitees in commercial establishments.~~

10 ~~(B) Invited guests.~~

11 (1) **Business invitees in for-profit establishments.**

12 (2) The attractive nuisance doctrine.

13 (g) This section does not excuse the owner or occupant of premises
14 from liability for injury to a person or property caused by a malicious
15 or an illegal act of the owner or occupant.

16 SECTION 2. IC 14-23-1-1 IS AMENDED TO READ AS
17 FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1. The department shall
18 do the following:

19 (1) Have the care, custody, and control of the forest land owned
20 by the state, exclusive of state parks.

21 (2) Adopt necessary rules to properly enforce this chapter.

22 (3) Establish, operate, and maintain nurseries for the production
23 of trees to be used in reforestation. The trees may be:

24 (A) used to reforest land owned by the state;

25 (B) supplied to owners of private land at a price not exceeding
26 cost of production; or

27 (C) used for planting on public roads or land under the terms
28 that are considered by the department to be for the public
29 benefit.

30 (4) Prepare, print, post, or distribute printed matter relating to
31 forestry.

32 (5) Make investigations or experiments with regard to forestry
33 questions.

34 (6) Subject to the approval of the governor, purchase land and
35 forests. For the purpose of acquiring land and forests, the
36 commission may exercise the right of eminent domain in the
37 manner provided in IC 14-17-3.

38 (7) Receive and accept, in the name of the people of Indiana, by
39 gift or devise, the fee or other estate in land or forests.

40 (8) Examine the forest land owned by the state or by a state
41 institution for the purpose of advising and cooperating in securing
42 proper forest management of the land.



(9) Employ, with approval of the authorities having control of the state penal institutions, convicts committed to a penal institution for the purpose of producing or planting trees, building roads, or doing other work in the forests and in clearing, draining, or developing land purchased or acquired by the state for forestry purposes.

(10) Propagate trees and shrubs for state institutions or for planting along highways. A common carrier may transport trees or shrubs grown by the state at a rate less than the established tariff to and from points within Indiana.

(11) Have the custody of all abstracts of title, papers, contracts, or related memoranda, except original deeds to the state, for land purchased or received under this section.

(12) Examine private forest land:

(A) upon request of; and

(B) at the expense of;

the owner for the purpose of advising the owner on the proper methods of forest management.

(13) Establish recreational fees for individuals accessing and using state forest land.

(14) Investigate new revenue raising methods to help carry out the purposes described in IC 14-23-3-4.

(15) Ensure at all times that ten percent (10%) of state forest acreage consists of forests that are one hundred (100) years or older.

(16) Ensure at all times that ten percent (10%) of state forest acreage consists of forests that are twenty (20) years or younger.

SECTION 3. IC 14-23-3-5 IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 5. (a) All income derived from:

(1) the sale of state forest land; ~~or~~

(2) the ~~sale of~~ products ~~of from~~ state forest land; ~~or~~

(3) **recreational fees for accessing and using state forest land;** shall be deposited in the fund.

(b) **Money in the fund at the end of a state fiscal year does not revert to the state general fund.**



COMMITTEE REPORT

Mr. Speaker: Your Committee on Natural Resources, to which was referred House Bill 1414, has had the same under consideration and begs leave to report the same back to the House with the recommendation that said bill be amended as follows:

Page 1, between the enacting clause and line 1, begin a new paragraph and insert:

"SECTION 1. IC 14-22-10-2, AS AMENDED BY P.L.113-2019, SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 2. (a) As used in this section and section 2.5 of this chapter, "governmental entity" means any of the following:

- (1) The government of the United States of America.
- (2) The state.
- (3) A county.
- (4) A city.
- (5) A town.
- (6) A township.
- (7) The following, if created by the Constitution of the United States, the Constitution of the State of Indiana, a statute, an ordinance, a rule, or an order:
 - (A) An agency.
 - (B) A board.
 - (C) A commission.
 - (D) A committee.
 - (E) A council.
 - (F) A department.
 - (G) A district.
 - (H) A public body corporate and politic.

(b) As used in this section and section 2.5 of this chapter, "monetary consideration" means a fee or other charge for permission to go upon a tract of land. The term does not include:

- (1) the gratuitous sharing of game, fish, or other products of the recreational use of the land;
- (2) services rendered for the purpose of wildlife management; or
- (3) contributions in kind made for the purpose of wildlife management.

(c) As used in this section and section 2.5 of this chapter, "owner" means a governmental entity or another person that:

- (1) has a fee interest in;
- (2) is a tenant, a lessee, or an occupant of; or
- (3) is in control of;



a tract of land.

(d) A person who goes upon or through the premises, including caves, of another:

- (1) with or without permission; and
- (2) either:
 - (A) without the payment of monetary consideration; or
 - (B) with the payment of monetary consideration directly or indirectly on the person's behalf by an agency of the state or federal government;

for the purpose of swimming, camping, hiking, sightseeing, **exercising, cycling,** or accessing or departing from a trail, a greenway, or another similar area, or for any other purpose (other than the purposes described in section 2.5 of this chapter) ~~does not have an assurance that the premises are safe for the purpose:~~ **is subject to the limitations of liability granted to the owner of the premises described in subsection (e).**

(e) The owner of the premises does not

- ~~(1) assume responsibility; or~~
- ~~(2) incur liability;~~

for an injury to a person or property caused by an act or failure to act of other persons using the premises: assume responsibility or incur liability for an injury or damage to a:

- (1) person caused by:**
 - (A) an act; or**
 - (B) the failure to act;**
- of another person using the premises;**
- (2) person caused by a condition on the land; or**
- (3) person's property caused by:**
 - (A) the act of another person using the premises; or**
 - (B) a condition on the land.**

(f) This section does not affect the following:

- ~~(1) Existing Indiana case law on the liability of owners or possessors of premises with respect to the following:~~
 - ~~(A) Business invitees in commercial establishments;~~
 - ~~(B) Invited guests;~~

(1) Business invitees in for-profit establishments.

(2) The attractive nuisance doctrine.

(g) This section does not excuse the owner or occupant of premises from liability for injury to a person or property caused by a malicious or an illegal act of the owner or occupant."

Renumber all SECTIONS consecutively.

and when so amended that said bill do pass.

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(Reference is to HB 1414 as introduced.)

LINDAUER

Committee Vote: yeas 8, nays 3.

